

24CHCV01586 24CHCV01586

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-06

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Case Number: 24CHCV01586 Hearing Date: July 6, 2026 Dept: F43

Dept. F43

Hearing Date: 07-06-26

Case # 24CHCV01586, Moses v. Ross

Dress for Less, et al.

Trial Date: 07-24-28

APPLICATION TO APPEAR

PRO HAC VICE

MOVING PARTY: Defendant/Cross-Complainant Brixmor Property
Owner II, LLC

RESPONDING PARTY: No responses were filed.

RELIEF REQUESTED

Order approving attorney Daniel R. Sarther's
application to appear as counsel pro hac vice with attorney Jack. C. Hsu on
behalf of defendant/cross-complainant Brixmor Property Owner II, LLC.

RULING: Motion is continued for further arguments at
the hearing on the application.

SUMMARY OF ACTION

On April 29, 2024, plaintiff Samantha Moses filed this personal injury action against several defendants, including Brixmor Property Owner II, LLC (Brixmor). Plaintiff asserts a single premises liability claim and alleges on June 20, 2022, defendants negligently created a dangerous condition that caused her to suffer injuries. Defendant Brixmor filed and served an answer on December 10, 2024, and filed and served a cross-complaint for breach of contract, contribution, indemnity, and declaratory relief on August 11, 2025.

On April 17, 2025, the court granted Brixmor's application for attorney Panagiota N. Fortsas to appear as counsel pro hac vice with counsel of record Jack C. Hsu.

On June 1, 2026, defendant Brixmor filed another application for attorney Daniel R. Sarther to appear in this action pro hac vice.

No opposition or other responses were filed.

ANALYSIS

A. Appearing As Counsel Pro Hac Vice

Any attorney licensed to practice before the bar of any United States court or the highest court in any state, and who has been retained to appear in a particular cause pending in a California court, but who is not a licensee of the California State Bar may apply to appear pro hac vice in California by submitting a written application and mailing notice to all interested parties, as well as notice and a \$50.00 application fee to the State Bar Association in San Francisco. ¹ (Cal. Rules of Court, rule 9.40(a), (c), (e).) ² An applicant may not reside or work in California, and may not perform regular or substantial business, professional, or other activities here. ³ (Id., rule 9.40(a).)

The application must state:

(1) The applicant's residence and office address;

(2) The
courts to which the applicant has been admitted to practice and the dates of
admission;

(3) That
the applicant is a licensee in good standing in those courts;

(4) That
the applicant is not currently suspended or disbarred in any court;

(5) The
title of each court and cause in which the applicant has filed an application
to appear as counsel pro hac vice in this state in the
preceding two years, the date of each application, and whether or not it was
granted; and

(6) The
name, address, and telephone number of the active licensee of the State Bar of
California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

Defendant Brixmor submits the verified application of
attorney Daniel R. Sarther. (Application
of Daniel R. Sarther.) Sarther is
licensed to practice law in the State of Illinois and the State of Washington,
is in good standing in both jurisdictions, and is not currently suspended or
disbarred. (Id. ¶¶ 2-4.) Sarther is not a resident of the State
California and is not regularly engaged in the practice of law in
California. (Id. ¶ 1.)

In the preceding two years, Sarther has applied to appear
pro hac vice in seven matters and has been approved for five of those matters.
(Sarther App. ¶ 5(a)-(e) [Los Angeles Superior Court, Orange County Superior
Court, and San Joaquin Superior Court].)
These applications were approved on August 24, 2023, July 11, 2024,
August 16, 2024, October 17, 2024, and January 20, 2026.

Sarther has two pending applications. (Sarther App. ¶ 5(f)-(g) [Andrew Ilasa v.
Brixmor, LLC, et al., Yolo County Superior Court, Case No. CV2026-0513 and Selena

Quintana v. Vertex Builders, LLC, et al., Los Angeles Superior Court, Case No. 25PSCV03384].) In the Yolo County matter, the court granted the application. (6/09/26 Minute Order - CV2026-0513.)

In the Los Angeles County matter, the court expressed concern that attorney Sarther “has too many” applications in the last two years and requested a supplemental declaration on his specialized knowledge. (6/22/26 Minute Order - 25PSCV03384.) This court shares the same concern.

“Absent special circumstances, repeated appearances by any person under this rule is a cause for denial of an application.” (California Rule of Court, rule 9.40(b).)

The court expresses some apprehension concerning attorney Sarther’s application due to the now six repeated appearances in California state courts in the past 2-3 years. Both Sarther’s application and attorney Jack C. Hsu’s supporting declaration are silent concerning any special circumstances which justify the repeated appearances without being licensed to practice in California.

Brixmor’s counsel of record, Jack C. Hsu, is the California attorney whose contact information has been provided. (Sarther Appl. ¶ 7; Declaration of Jack C. Hsu.) Sarther’s application, Hsu’s declaration, and the proposed order were served on opposing counsel and the State Bar of California. (Hsu Decl. at pp. 10-12 [Proof of Service and Service List].) And the application fee was paid on June 1, 2026. (Application at p. 14.)

Although counsel have complied with the requirements of California Rule of Court, rule 9.40(c)-(e), the court seeks further clarification concerning attorney Sarther’s repeated appearances and any “special circumstances” justifying the repeat appearances.

Therefore, the court continues its ruling on the application to allow further oral arguments. Attorney Sarther should be prepared to discuss any “special circumstances” which would justify the court allowing him to practice law for a seventh time in California in two years without a California law license.

The court will issue a ruling thereafter.

CONCLUSION and ORDER

Attorney Daniel R. Sarther's application to appear as counsel pro hac vice is continued for further oral arguments.

Defendant/Cross-Complainant Brixmor Property Owner II,
LLC to give notice.